IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA FAMILY LAW DIVISION

In re: the Marriage of:

SARAH HANSON,

Petitioner/Wife,

and

CHRISTOPHER HANSON,

Respondent/Husband.

_____/

Case No.: 24-DR-001150

Division: D

WIFE'S MOTION FOR PSYCHOLGICAL EXAMINATION OF HUSBAND

Petitioner, Sarah Hanson, by and through the undersigned attorney, and pursuant to Fla. Fam. L. R. P. 12.360, files this Motion for Psychological Examination of Husband. As grounds therefore, Wife states as follows:

1. The parties to this action are Petitioner, Sarah Hanson ("**Wife**") and Respondent, Christopher Hanson ("**Husband**"), collectively, (the "**Parties**").
2. Pending before the Court is Wife's Amended Petition for Dissolution of Marriage with Minor Children and for Other Related Relief ("**Wife's Amended Petition**") **[DIN 42].**
3. There are two (2) minor children who were born to the Parties during the marriage, to wit: H.G.H., a female, born [redacted] 2017, at Tampa, Florida; and H.G.H., a female, born [redacted] 2019, at Tampa, Florida (the "**Children**").
4. On May 16, 2024, Husband filed a Response to Motion to Compel Payments and Motion to Compel Evidence of Marital Assets and Financial Information **[DIN 22]** wherein Husband stated:
   a. Husband has "[redacted]" (¶ 21).
   b. Husband "is [redacted]" (¶ 22).

c. Husband "will [redacted]." (¶ 22).

d. Husband acknowledged that he "momentarily refused to provide payment for [the Children's] expenses, certainly in part out of anger and frustration…" (Emphasis added).

5. Husband has also made other references to his mental state in connection with this litigation.

6. Husband's behavior and actions in connection with this litigation, including filing communications with his attorney with the Court, have become increasingly unstable and erratic.

7. A parent involved in a dispute relating to parental responsibility and time-sharing may be required to submit for a psychological examination by a qualified expert when a parent's mental health is in controversy. *See* Fla. Fam. L. R. P. 12.360.

8. Where good cause is shown and the mental condition of a party is in controversy, the Court may order a psychological evaluation. *See Williams v. Williams*, 500 So. 2d 166 (Fla. 2d DCA 1989).

9. Pursuant to section 61.13(3)(g), Florida Statutes, a trial court is required to consider the mental health of the parents for the purposes of determining parental responsibility and time-sharing in order to determine the best interests of the children.

10. A parent's mental state is typically at issue in a custody hearing only when there are verified allegations that the parent in question is having mental problems that could substantially impact his or her ability to properly raise children. *See Wade v. Wade*, 124 So. 3d 369 (Fla. 3d DCA 2013).

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11. The mental state of a parent, even though "in controversy," cannot adequately be evidenced without the assistance of an expert medical testimony. *See Gasparino v. Murphy*, 352 So. 2d 933 (Fla. 2d DCA 1997).
12. It is in the best interests of the Children that Husband undergo a psychological examination to aid the Court in determining Husband's present ability to parent the Children, and whether Husband requires any additional treatment for any mental health conditions.
13. Husband should be solely responsible for the costs of any psychological testing, psychological examination, and any recommended treatments for the Husband.

WHEREFORE, the Wife, Sarah Hanson, respectfully requests that this Honorable Court enter an Order awarding the following relief:

A. Order that Husband undergo a psychological examination to aid the Court in determining Husband's present ability to parent the Children, and whether Husband requires any additional treatment for any mental health conditions;
B. Require Husband to be solely responsible for the costs of any psychological testing, psychological examination, and any recommended treatments for the Husband; and
C. Grant any other relief that the Court finds to be necessary or appropriate in this matter.

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Dated: December 13, 2024

Respectfully submitted,

/s/ Scott Paul Davis

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CERTIFICATE OF SERVICE

I hereby certify that, on December 13, 2024, a true and correct copy of the foregoing was served via the Florida Courts E-Filing Portal on all counsel of record.

/s/ Scott Paul Davis

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